United States Courts
Southern District of Texas
FILED
OCT - 7 2026
Nathan Ochsner, Clerk of Court

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

REINALDO J. AGUIAR MARCANO,
Plaintiff, Pro Se,

v.

G. TROY PICKETT,
GLORIA ESPINA,
HON. OSCAR TELFAIR III,
(in his official capacity), and
SHERIFF ERIC FAGAN,
(in his official capacity),
Defendants.

26CV8794

CIVIL ACTION NO. ____

COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF

JURY TRIAL DEMANDED

PLAINTIFF'S ORIGINAL COMPLAINT UNDER 42 U.S.C. § 1983

I. INTRODUCTION

1. This is a civil rights action brought under 42 U.S.C. § 1983. Plaintiff Reinaldo J. Aguiar Marcano, a recognized political refugee and federal whistleblower, seeks damages and declaratory relief against private actors and state officials who conspired under color of law to deprive Plaintiff of his fundamental liberty, parental association, and intellectual property rights without due process of law.

2. As memorialized in written correspondence and court filings dated October 6, 2026, private Defendants explicitly weaponized a void, unserved civil arrest warrant (Capias) to extort corporate and defense-licensed patent assets from Plaintiff, culminating in an active, systemic due-process dilemma designed to either execute Plaintiff's immediate arrest or force a default judgment seizing his home. This action seeks to enjoin the enforcement of the constitutionally defective warrant and recover damages from the private co-conspirators.

II. JURISDICTION AND VENUE

3. This Court has subject-matter jurisdiction over Plaintiff's federal constitutional claims pursuant to 28 U.S.C. § 1331 (Federal Question) and 28 U.S.C. § 1343(a)(3) (Civil Rights).

4. Venue is proper in the Southern District of Texas under 28 U.S.C. § 1391(b) because all Defendants reside within this District and the events giving rise to these claims occurred in Fort Bend County, Texas.

III. PARTIES

5. **Plaintiff Reinaldo J. Aguiar Marcano** is a resident of Fort Bend County, Texas, and a named inventor on federally registered patent applications holding defense licenses.

6. **Defendant G. Troy Pickett** is an attorney licensed in Texas, operating as a private actor who conspired with state officials to leverage a void arrest warrant for extortionate purposes.

7. **Defendant Gloria Espina** is a private actor acting in concert with Defendant Pickett.

8. **Defendant Hon. Oscar Telfair III** is the Presiding Judge of the 387th District Court. He is sued *solely in his official capacity* for declaratory relief.

9. **Defendant Sheriff Eric Fagan** is the Sheriff of Fort Bend County. He is sued *solely in his official capacity* for declaratory and injunctive relief to prevent the execution of a void warrant.

IV. FACTUAL ALLEGATIONS

10. **The First Amendment Protected Expression:** On September 5, 2025 (Index #43), opposing counsel Morgan T. Rivera-Hybner (Adams Law Firm, P.C.) formally filed and entered into evidence Exhibits No. 37 and 38, which consisted of two physical volumes

of a whistleblower book authored by Plaintiff exposing judicial conflicts. The book's front cover prominently features the faces of Defendant Telfair and Regional Presiding Judge Susan Brown. On September 8, 2025, Defendant Telfair inspected the cover from the bench and interrogated Plaintiff.

11. **Retaliatory Parental Deprivation, Coerced Pharmacological Demands, and Record-Tampering:** In immediate response to this protected expression, Defendant Telfair signed highly restrictive Temporary Orders on October 15, 2025 (Index #89). The District Clerk's official docket (Index #91) confirms that these orders were returned by the USPS as "Returned to Sender / Not Known Unable to Forward" on October 16, 2025. Plaintiff was never formally served with the written orders, depriving the state court of personal jurisdiction and creating a total absence of due process. This retaliatory pattern of service-evasion and record-tampering was established at the inception of the case, when Judge Richard Bell signed a Temporary Restraining Order on April 11, 2025 (Index #8) that was used to secret Plaintiff's minor child for 49 consecutive days, despite the clerk's docket (Index #9) certifying that the citation was returned completely "Unserved." Following these void orders, private Defendants sought a psychiatric evaluation of Plaintiff based solely on his published whistleblower books (Index #43, Exhibits No. 37 & 38), claiming the publication itself was proof of mental instability. Crucially, although Defendant Telfair explicitly denied the motion for a psychiatric evaluation—finding no legal or evidentiary grounds for any mental-fitness concerns—he nonetheless signed the restrictive Temporary Orders stripping Plaintiff of his parental rights and restricting him to supervised visits, extraordinarily designating the hostile opposing litigant (Gloria Espina) as the sole "supervisor" of Plaintiff's visitation. Under Texas law and fundamental constitutional standards, delegating unilateral, non-reviewable gatekeeping authority over parental association to a hostile, biased adverse party in active litigation is a legal impossibility and a severe deprivation of due process designed to guarantee parental alienation. Because the court formally found no basis to question Plaintiff's mental competence, the imposition of these restrictive, unserved custody-stripping orders consti-

tutes a direct, retaliatory punishment for protected First Amendment expression, rather than a legitimate protective measure.

12. **Violation of Mandatory Jurisdictional Stay:** On January 27, 2026, Plaintiff's Third Verified Motion to Recuse was formally referred, triggering an automatic, mandatory stay of all proceedings under Texas Rule of Civil Procedure 18a(g). In open defiance of this stay, Defendant Telfair held hearings and entered a Judge Docket Entry signing an order for Capias on May 15, 2026, followed by a written Order for Capias on May 22, 2026 (Index #222). This created an 11-day administrative gap before the Capias was issued on May 26, 2026 (Index #231). Critically, as of today, October 6, 2026, Defendants have maintained this void warrant actively in the state registry for exactly 144 consecutive days since its signing on May 15, 2026, and 133 days since its physical issuance on May 26, 2026, subjecting Plaintiff to a continuous, severe restriction on his physical liberty and an ongoing threat of roadside arrest without notice or opportunity to be heard. Critically, the docket contains no record of any notice or copy of these orders being sent to Plaintiff under Rule 21(f)(10), leaving Plaintiff under an active, enforceable, but completely unserved warrant.

13. **The Extortion Demand and Active Appellate Blockade:** On October 6, 2026, Defendant Pickett transmitted a written demand to Plaintiff, explicitly proposing to "move the court to withdraw the capias" only if Plaintiff agreed to surrender intellectual property and financial assets. This establishes a conspiracy to use the physical threat of state arrest for private extortion. That same day, the Texas First Court of Appeals formally dismissed Plaintiff's appeal challenging the void orders (Cause No. 01-26-00511-CV) pursuant to Texas Family Code § 6.507, confirming that state appellate corrective processes are completely closed and unavailable to address these ongoing constitutional deprivations.

14. **The October 6, 2026 Modification Ambush and Coercive Dilemma:** Concurrently with the appellate dismissal on October 6, 2026, Defendants Pickett and Espina filed a "Motion to Modify Temporary Orders" and issued an official "Notice of Hearing" setting

a mandatory, in-person appearance before Defendant Telfair for **November 5, 2026, at 9:00 AM**. This filing seeks to permanently seize Plaintiff's Valleyside residence and further restrict his parental rights. This mandatory hearing constitutes an unconstitutional, state-sanctioned dilemma: if Plaintiff appears physically, he will be immediately arrested in open court under the void Capias; if he does not appear, Defendant Telfair will enter a default judgment depriving him of his home and parental rights.

V. CAUSES OF ACTION

COUNT I: 42 U.S.C. § 1983 (Fourteenth Amendment Due Process)

15. The issuance and maintenance of a civil arrest warrant without personal service of the underlying orders violates the Due Process Clause. Defendants Pickett and Espina acted as private co-conspirators under *Dennis v. Sparks*, 449 U.S. 24 (1980), utilizing the state apparatus to deprive Plaintiff of liberty.

COUNT II: 42 U.S.C. § 1983 (First Amendment Retaliation)

16. The sudden deprivation of parental rights and issuance of the Capias immediately following the introduction of Plaintiff's publication constitutes actionable First Amendment retaliation.

VI. PRAYER FOR RELIEF

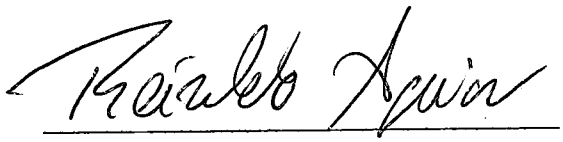
WHEREFORE, Plaintiff respectfully requests:

A. A Declaratory Judgment that the October 15, 2025 Temporary Orders and resulting Capias are void *ab initio* for lack of personal service;

B. Compensatory and punitive damages against Defendants Pickett and Espina;

C. Any further relief this Court deems just and proper.

Respectfully submitted,



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